

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS, LLC,
RESPONDENTS.

**RESPONDENT OMNI LOGISTICS, LLC'S AND RESPONDENT
EPIC FREIGHT SOLUTIONS LLC'S RESPONSE IN OPPOSITION TO
COMPLAINANT'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS**

Respondent Omni Logistics, LLC and Respondent Epic Freight Solutions LLC (collectively, “Respondents”), through counsel, submit this Response in Opposition to Complainant’s Motion to Compel Production of Documents (the “Motion”) and respectfully state as follows:

Complainant’s Motion is premature, as Respondents already have indicated that they will produce responsive SMS and “WhatsApp” messages (the “Documents”). Complainant first conferred with Respondents’ counsel regarding the Documents on November 16, 2023. Notwithstanding the one-sided discovery standard that Complainant continues to employ in this case,¹ Respondents’ counsel confirmed on November 20, 2023 that responsive, non-privileged

¹ The Documents in which Complainant apparently is most interested—text messages between Ken Thompson and Yohanse Manzanarez—should be in Complainant’s possession in the first instance, but Mr. Thompson apparently can no longer access those Documents “due to a change of his device.” (Motion, p. 5, fn. 1.) Respondents have produced more than 10,000 documents, totaling over 60,000 pages, the vast majority of which are emails to or from Complainant’s employees, while Complainant has only produced

Documents in Respondents' possession will be produced. However, Respondents have been unable to complete the collection Documents primarily due to unavailability of the key custodian's personal mobile device due to travel outside the U.S. for a 10-day period following the Thanksgiving holiday.

Complainant's Motion omits details about the timing of its own production of SMS and WhatsApp messages – which it failed to produce until the day it filed the Motion – presumably in an effort to demonstrate its clean hands to the Presiding Officer. Complainant's misleading statement that it “produced WhatsApp communications relevant to Respondents' discovery requests” (Motion, p. 5. Fn. 1) does not note that it produced WhatsApp messages on December 6, 2023.

While this Motion was unnecessary in the first instance, Respondents are proceeding with efforts to produce the responsive, non-privileged Documents during the week of December 11, 2023, likely before the Presiding Officer has time to issue a decision on Complainant's Motion. Accordingly, the Presiding Officer should deny the Motion.

over 5,000 documents, totaling around 45,000 pages, and failed to make reciprocal efforts to ensure all of the parties' communications have been produced.

Dated: December 13, 2023

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh

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*Counsel for Respondents Omni Logistics LLC
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of December, 2023, a true and correct copy of the foregoing was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)
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Counsel for Complainant TPG Pressure, Inc.

/s/ Marc S. Blubaugh
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